

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                                                   |                                               |                                                                                                                                                                                                                       |
|--------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|-----------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Whitney Beber                   | Team:<br>Squad #02                                                                                                | CCRB Case #:<br>201607170                     | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 08/21/2016 12:57 AM  | Location of Incident:<br>145th Street (A-B-C-D train lines)<br>Subway Station; Transit District 3<br>stationhouse | 18 Mo. SOL<br>2/21/2018                       | Precinct:<br>30                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Sun, 08/21/2016 3:53 AM | CV Reported At:<br>CCRB                                                                                           | How CV Reported:<br>Call Processing<br>System | Date/Time Received at CCRB<br>Sun, 08/21/2016 3:53 AM                                                                                                                                                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. POF Diana Hoyt     | 25257  | 948355 | TB DT03 |
| 2. POF Monique Palmer | 26881  | 922934 | TB DT03 |

| Witness Officer(s)         | Shield No | Tax No | Cmd Name |
|----------------------------|-----------|--------|----------|
| 1. POF Colleen Dolan       | 24313     | 954744 | TB DT03  |
| 2. POM Jean Alejandro      | 2710      | 954472 | TB DT03  |
| 3. POF Christina Cosentino | 17476     | 958439 | TB DT03  |

| Officer(s)             | Allegation                                                                                                                                           | Investigator Recommendation |
|------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POF Diana Hoyt     | Abuse: At the 145th Street (A-B-C-D train lines) Subway Station in Manhattan, Police Officer Diana Hoyt stopped § 87(2)(b)                           | A . Exonerated              |
| B . POF Diana Hoyt     | Abuse: At the 145th Street (A-B-C-D train lines) Subway Station in Manhattan, Police Officer Diana Hoyt stopped § 87(2)(b)                           | B . Exonerated              |
| C . POF Monique Palmer | Discourtesy: At the 145th Street (A-B-C-D train lines) Subway Station in Manhattan, Police Officer Monique Palmer spoke discourteously to § 87(2)(b) | C . Unfounded               |
| D . POF Monique Palmer | Discourtesy: At the Transit District 3 stationhouse, Police Officer Monique Palmer spoke discourteously to § 87(2)(b)                                | D . Substantiated           |

### Case Summary

On August 21, 2016, § 87(2)(b) filed this complaint with the CCRB through the Call Processing System.

On August 21, 2016, at approximately 12:57 a.m., § 87(2)(b) and his friend § 87(2)(b) went to the 145<sup>th</sup> Street subway station on the A- B- C- D train lines in Manhattan, to head home from a friend's birthday party. § 87(2)(b) and § 87(2)(b) went through the turnstile together using one fare. § 87(2)(b) and § 87(2)(b) were stopped by Police Officer Diana Hoyt of Transit District 3 (**Allegations A and B**). Police Officer Hoyt and Police Officer Monique Palmer of Transit District 3 asked for their IDs and walked them towards the Transit District 3 stationhouse. As they walked, Police Officer Palmer allegedly told § 87(2)(b) to "look fucking forward" (**Allegation C**).

Inside the Transit District 3 stationhouse, § 87(2)(b) and § 87(2)(b) were told to sit down. § 87(2)(b) sat down but § 87(2)(b) did not. § 87(2)(b) was told repeatedly to sit down, but he did not. Police Officer Palmer allegedly bumped her chest into § 87(2)(b) chest and allegedly told § 87(2)(b) to "sit [his] fucking ass down," (**Allegation D**). § 87(2)(b) alleged that Police Officer Palmer also said to him, "I hope we get to book your ass," (**within Allegation D**).

Police Officer Hoyt issued a summons to § 87(2)(b) and § 87(2)(b) for § 87(2)(b) (Board Review 01).

Surveillance footage from MTA only captured § 87(2)(b) and § 87(2)(b)'s fare evasion and the subsequent approach of Police Officer Hoyt and Police Officer Palmer; there is no accompanying audio (Board Review 02, 03, and 04). This footage is attached to IA #'s 60, 61, and 62.



201607170\_20160926\_1456\_DM.mp4

### Mediation, Civil and Criminal Histories

- On August 24, 2016, § 87(2)(b) was offered mediation over the phone and again on August 25, 2016, at the conclusion of his interview at the CCRB. § 87(2)(b) declined to mediate this complaint § 87(2)(b)
- A Notice of Claim search was requested from the New York City Comptroller's Office and the results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by and involving § 87(2)(b) or § 87(2)(b) (Board Review 05 and 06).
- Police Officer Palmer has been a member of the NYPD for 18 years and has had one prior CCRB allegation against her that was not substantiated § 87(2)(g)

§ 87(2)(g)

- Police Officer Hoyt has been a member of the NYPD for 7 years and has had one prior CCRB allegation against her that was substantiated. In CCRB case #201009081 a stop allegation was substantiated against her and she received instructions (see officer history).

### **Findings and Recommendations**

#### **Explanation of Subject Officer Identification**

- § 87(2)(g) Police Officer Hoyt was the officer who observed § 87(2)(b) and § 87(2)(b)'s infraction and was the officer who issued the summonses to them § 87(2)(b)

**Allegation A- Abuse of Authority: At the 145<sup>th</sup> Street (A-B-C-D train lines) Subway Station in Manhattan, Police Officer Diana Hoyt stopped § 87(2)(b)**

**Allegation B- Abuse of Authority: At the 145<sup>th</sup> Street (A-B-C-D train lines) Subway Station in Manhattan, Police Officer Diana Hoyt stopped § 87(2)(b)**

§ 87(2)(b) filed his initial complaint with the CCRB via the Call Processing System on August 21, 2016. § 87(2)(b) provided a phone statement on August 24, 2016. § 87(2)(b) was interviewed at the CCRB on August 25, 2016, and answered follow-up questions by phone on August 30, 2016. § 87(2)(b) provided a phone statement to the CCRB on August 29, 2016, and § 87(2)(b) was interviewed at the CCRB on August 31, 2016. Police Officer Palmer was interviewed at the CCRB on September 13, 2016. Police Officer Hoyt was interviewed at the CCRB on September 15, 2016. Police Officer Jean Alejandro and Police Officer Colleen Dolan were interviewed at the CCRB on September 22, 2016. Police Officer Christina Cosentino was interviewed at the CCRB on October 18, 2016.

It is undisputed that § 87(2)(b) and § 87(2)(b) entered the subway station together using only one fare and that Police Officer Hoyt observed this happen, stopped them in regards, and ultimately issued summonses to them in regards. § 87(2)(b) and § 87(2)(b) admitted to and were issued summonses for § 87(2)(b), therefore the investigation recommends that **Allegations A and B** be **exonerated**.

**Allegation C-Discourtesy: At the 145<sup>th</sup> Street (A-B-C-D train lines) Subway Station in Manhattan, Police Officer Monique Palmer spoke discourteously to § 87(2)(b)**

§ 87(2)(b) stated in his sworn statement that after being stopped by Police Officer Hoyt and Police Officer Palmer for fare evasion, they walked him and § 87(2)(b) to the Transit District 3 stationhouse. As they walked to the stationhouse, Police Officer Palmer said, "They probably do this on the regular." When § 87(2)(b) heard this, he turned around and made a taken-aback facial expression. In his sworn statement, he alleged that Police Officer Palmer, at this moment, told him, "Look fucking forward." In his phone statement, § 87(2)(b) mentioned everything that he stated in his sworn statement about what occurred during the walk to the Transit District 3 stationhouse, but did not allege that Police Officer Palmer told him to "look

fucking forward.” § 87(2)(b) made no other allegations of discourteous language against Police Officer Palmer prior to them entering the Transit District 3 stationhouse in either statement.

§ 87(2)(b)'s account was largely consistent with that of § 87(2)(b) and he corroborated all of the other allegations of discourteous language made by § 87(2)(b) except for the allegation that Police Officer Palmer told § 87(2)(b) to “look fucking forward,” during the walk into the stationhouse.

In her sworn statement, Police Officer Palmer stated that she did not tell § 87(2)(b) to “look fucking forward.” Police Officer Hoyt stated that though she observed Police Officer Palmer and § 87(2)(b) talking during the walk to the stationhouse she did not recall what they said to one another, she, however, did not hear Police Officer Palmer tell § 87(2)(b) to “look fucking forward.”

Police Officer Dolan, Police Officer Cosentino, and Police Officer Alejandro were in the Transit District 3 stationhouse at the time and were not present to witness this allegation.

§ 87(2)(g)  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED] It is therefore recommended that **Allegation C** be **unfounded**.

**Allegation D- Discourtesy: At the Transit District 3 Stationhouse, Police Officer Monique Palmer spoke discourteously to § 87(2)(b)**

§ 87(2)(g)  
[REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(b) stated that when they entered the Transit District 3 stationhouse, Police Officer Hoyt told him and § 87(2)(b) to stand to the right in a corner. In both his telephone statement and his sworn statement, § 87(2)(b) alleged that Police Officer Palmer bumped her chest into his chest and told him to “sit [his] fucking ass down.” He then asked other officers whether Police Officer Palmer was allowed to talk to him that way. Police Officer Hoyt then intervened and told Police Officer Palmer that she “got this.” Police Officer Palmer then stated that she hoped they got to “book” § 87(2)(b) “ass.”

In § 87(2)(b)'s phone statement, he stated that Police Officer Palmer told § 87(2)(b) to “sit his ass down,” and that § 87(2)(b) asked more than once if Police Officer Palmer was allowed to talk to him like that. In his sworn statement, § 87(2)(b) stated that Police Officer Palmer told § 87(2)(b) to “sit the fuck down,” and that § 87(2)(b) asked if Officer Palmer was allowed to talk to him like that. In his phone statement, § 87(2)(b) stated that Police Officer Palmer did not come into physical contact with § 87(2)(b) but she was standing close to him. He stated that they were “chest to chest” and that Police Officer Palmer “got up in his face.” In both his phone

statement and his sworn statement § 87(2)(b) corroborated § 87(2)(b) allegation that Police Officer Palmer said to § 87(2)(b) “I hope they get to book your ass.”

In her sworn statement, Police Officer Palmer stated that she told § 87(2)(b) repeatedly to have a seat and indicated that her tone did not change by demonstrating that she repeatedly said “have a seat” in the same even tone of voice. Police Officer Palmer stated that she did not tell § 87(2)(b) to “sit his fucking ass down,” “I hope we get to book your ass,” or use any profanity when speaking to § 87(2)(b). She stated that § 87(2)(b) said, “She can’t talk to me like this.” When asked what she thought § 87(2)(b) was referring to, Police Officer Palmer stated that she thought § 87(2)(b) believed that she “couldn’t tell him what to do.” Police Officer Palmer stated that during the time she asked § 87(2)(b) to sit down, she did not make any physical contact with him.

Police Officer Hoyt stated that she went to “run” § 87(2)(b) and § 87(2)(b) s names at the desk approximately 15 feet away from where § 87(2)(b) and Police Officer Palmer were standing. Police Officer Hoyt stated that Police Officer Palmer was screaming at § 87(2)(b) to “sit down.” While Police Officer Hoyt did not see Police Officer Palmer bump § 87(2)(b) chest or see who stepped towards whom, she stated that when she looked up from her position by the desk she saw that Police Officer Palmer and § 87(2)(b) were “face to face.”

Police Officer Hoyt left the desk and went over to where Police Officer Palmer, § 87(2)(b) and § 87(2)(b) were in order to resume control over the situation because it had “started to get loud,” and Police Officer Palmer was standing “face to face” with § 87(2)(b) and screaming at him repeatedly to “sit down.” Police Officer Hoyt told Police Officer Palmer that “I got this from here.” She also stated that “two other officers came over because it started to get loud,” and tried to get § 87(2)(b) to “calm down and sit down.” Police Officer Hoyt described Police Officer Palmer and § 87(2)(b) as going “head to head,” but stated that, while Police Officer Palmer’s tone of voice escalated during this exchange, § 87(2)(b) voice was “steady and calm.”

When asked what she thought § 87(2)(b) was referring to when he said “you can’t talk to me like this,” Police Officer Hoyt stated that she thought he was referring to Police Officer Palmer yelling because she did not really hear anything Police Officer Palmer said aside from the command, “sit down.” She did not hear Police Officer Palmer tell § 87(2)(b) “sit his fucking ass down,” “I hope we get to book your ass,” or use any profanity.

During the time Police Officer Hoyt was at the stationhouse desk, three other police officers, Police Officer Dolan, Police Officer Cosentino, and Police Officer Alejandro, stopped to observe the interactions between Police Officer Palmer and § 87(2)(b). Police Officer Cosentino stated that she was at the stationhouse desk. Police Officer Dolan stated that she was standing near the benches in a corner during the incident and that she heard less than ten minutes of the conversation between Police Officer Palmer, Police Officer Hoyt, § 87(2)(b) and § 87(2)(b). Police Officer Alejandro was processing an arrest at the time of the incident going in and out of the arrest processing room and area in which § 87(2)(b) and § 87(2)(b) were waiting.

Neither Police Officer Alejandro, Police Officer Dolan, nor Police Officer Cosentino saw Police Officer Palmer bump her chest into § 87(2)(b) chest, heard Police Officer Palmer tell § 87(2)(b) to “sit [his] fucking ass down,” “I hope we get to book your ass,” use any other profanity or heard her raise her voice.

Patrol Guide section 203-09 requires that NYPD officers be “courteous and respectful” in their public conduct (Board Review 07).

§ 87(2)(g)  
[REDACTED]

§ 87(2)(g)  
[REDACTED]

§ 87(2)(g)  
[REDACTED]

[REDACTED] It is therefore recommended that  
**Allegation D be substantiated.**

Squad: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date